

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 14-cv-00348-MEH

FREDERIC CHARLES DENEFFE,

Plaintiff,

v.

SKYWEST, INC.,

Defendant.

VERDICT FORM

We, the Jury, present our answers to the questions submitted by the Court, to which we have all agreed:

1. Do you find Mr. Deneffe has proved by a preponderance of the evidence that he neither knew, nor through the exercise of reasonable diligence should have known, SkyWest designated him as "ineligible for rehire" until 2013?

Yes _____

No X

If your answer to Question No. 1 is Yes, then proceed to Question No. 2.

If your answer to Question No. 1 is No, then your deliberations are complete. Please sign and date the verdict form below and do not answer the following questions.

2. Do you find Mr. Deneffe has proved by a preponderance of the evidence that he was prevented from securing employment as a pilot because of SkyWest's disclosure of the termination form containing the "ineligible for rehire" designation to Global Exec Aviation?

Yes _____

No _____

If your answer to Question No. 2 is Yes, then proceed to Question No. 3.

If your answer to Question No. 2 is No, then your deliberations are complete. Please sign and date the verdict form below and do not answer the following questions.

3. Do you find Mr. Deneffe has proved by a preponderance of the evidence that SkyWest Airlines discriminated against him because of his age when it designated him as "ineligible for rehire" and disclosed the designation to Global Exec Aviation?

Yes _____

No _____

If your answer to Question No. 3 is Yes, then proceed to Questions No. 4-6.

If your answer to Question No. 3 is No, then your deliberations are complete. Please sign and date the verdict form below and do not answer the following questions.

4. Was SkyWest's conduct "willful" as that term is defined in Instruction No. 40?

Yes _____

No _____

5. What is the total amount of Mr. Deneffe's back pay damages, if any? Back pay damages are those losses described in Instruction No. 37. You should answer "0" if you determine there were none.

\$ 0

6. If you find that Deneffe had back pay damages, as set forth in Question No. 5, did SkyWest prove, by a preponderance of the evidence, the two elements of its affirmative defense that Mr. Deneffe failed to make reasonable efforts to reduce his economic damages, as set forth in Instruction No. 38?

Yes _____

No _____

If your answer to Question No. 6 is No, then your deliberations are complete. Please sign and date the verdict form below.

If your answer to Question No. 6 is Yes, by what amount do you reduce Plaintiff's back pay damages?

\$ _____

PLEASE SIGN AND DATE THIS VERDICT FORM:

Dated this 26 day of August, 2016.